

1 **Important Information for Tentative Rulings and Hearings:**

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- 3 1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website
- 4 using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
- 5 2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party
- 6 (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing
- 7 is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not
- 8 include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the
- 9 Court's website using the following link: [https://sf.courts.ca.gov/general-information/holiday-](https://sf.courts.ca.gov/general-information/holiday-schedules)
- 10 [schedules](https://sf.courts.ca.gov/general-information/holiday-schedules).
- 11 3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case,
- 12 please call (415) 551-3741 or send an email to Department403@sftc.org.
- 13 4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case,
- 14 please call (415) 551-3744 or send an email to Department404@sftc.org.
- 15 5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case,
- 16 please call (415) 551- 3756 or send an email to Department414@sftc.org.
- 17 6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please
- 18 specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language
- 19 to which you object.
- 20 7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR
- 21 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom
- 22 from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m.
- 23 or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to
- 24 appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The
- 25 Court is not required to contact you before your hearing.
- 26 8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for
- 27 Remote Appearances in San Francisco Family Court set forth below.
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- 29

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRIAM GAYLE KANE,

Petitioner

VS.

DAVID WILLIAM KANE,

Respondent

) Case Number: FDI-23-798208

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; JUDGMENT ENFORCEMENT;
SANCTIONS; CASE MANAGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miriam Gayle Kane and Respondent David William Kane.
- 2) On 5/1/26, Petitioner filed a Request for Order seeking: (a) enforcement of terms of the parties' 11/6/25 Judgment; (b) \$5,000 in Family Code section 271 sanctions; (c) \$73,488 in attorney's fees and costs for fees currently owed and anticipated fees (including expert fees); and (d) a trial setting date.
- 3) On 5/7/26, Petitioner filed a Proof of Service indicating service of Petitioner's Request for Order and supportive documents was effectuated by electronic service on Respondent's counsel on 5/7/26.
- 4) On 6/2/26, Petitioner filed an Income and Expense Declaration.
- 5) On 6/2/26, Petitioner filed a Proof of Service indicating service of Petitioner's Income and Expense Declaration was effectuated by electronic service on Respondent's counsel on 6/2/26.

- 6) On 6/22/26, Petitioner filed an Update Declaration augmenting the Family section 2030 attorney's fees request from \$73,488 to \$86,827 with attached attorney billing statements.
- 7) Respondent did not file a Responsive Declaration.
- 8) At the prior 6/25/26 hearing, counsel for Respondent requested a short continuance. The Court granted the continuance and ordered Respondent to file a Responsive Declaration and updated Income and Expense Declaration by 6/30/26, with Petitioner to file Reply Declaration by 7/6/26. The matter was continued to 7/9/26.
- 9) Respondent did not file a Responsive Declaration and updated Income and Expense Declaration by 6/30/26.
- 10) On 7/6/26, Petitioner filed a declaration entitled Second Update Declaration of Attorney for Petitioner in Support of Request for Attorney's Fees wherein Petitioner states that Respondent failed to comply with the briefing instructions ordered at the prior hearing and requesting and additional \$5,000 in Family Code section 271 sanctions, for a total of \$10,000 in sanctions.

B. Findings and Order

- 1) Petitioner's unopposed request for enforcement of terms of the parties' 11/6/25 Judgment is GRANTED. Based on the terms of the 11/6/25 Judgment, the Court finds good cause to issue the following orders:
- 2) Regarding the Auburn Street property (located at 35 Auburn Street, San Francisco), the Court finds that Respondent failed to provide timely proof of any Family Code section 2640 reimbursement claims pursuant to section 2(a)(i) of the Judgment; therefore, no Family Code section 2640 reimbursement claim related to the Auburn Street property will be credited absent further order of the Court.
- 3) The Court confirms that the agreed value of the Auburn Street property for purposes of a buyout is \$1,550,000. See section 2(a)(ii) of the Judgment.
- 4) By 7/9/26, Respondent shall notify Petitioner in writing whether he intends to proceed with a buyout of Petitioner's community property interest in Auburn Street property based on the agreed \$1,550,000 value.
- 5) If Respondent elects to proceed with the buyout, Respondent shall complete the buyout by 9/9/26, unless the parties agree otherwise in writing.

- 6) The Court reserves jurisdiction over the disposition of the Auburn Street property and any related issues.
- 7) If Respondent does not timely elect to proceed with or complete the buyout, Petitioner may file a new Request for Order seeking to compel the sale of the Auburn Street property.
- 8) Regarding retirement accounts, the parties agreed to jointly retain Moon Schwartz and Madden (MSM) to characterize and equalize all retirement accounts. See section 2(b)(i) of the Judgment.
- 9) Respondent shall supply all preliminary information and documents requested by MSM by 7/2/26. Respondent shall pay his 50% share of MSM's estimated cost and supply any additional information and documents requested by MSM within 7 days of MSM's request.
- 10) The Court reserves jurisdiction to issue additional orders to ensure completion of the equalization or retirements accounts and to impose sanctions in the event Respondent fails to comply.
- 11) Regarding retrieval of personal property, the parties shall coordinate a date certain for the transfer of Petitioner's personal property consistent with the Judgment. The parties shall meet and confer regarding and deadline and delivery of the items as the terms of the Judgment require Respondent to deliver the items to a storage site in either San Francisco or San Mateo. See section 3(a). The parties are encouraged to work cooperatively together to make the transfer of property as seamless for both sides as possible.
- 12) Petitioner's request for \$86,827 in Family Code section 2030 attorney's fees is DENIED.
- 13) Petitioner's request for Family Code section 271 sanctions is GRANTED in the amount of \$5,000 as the Court finds Respondent's conduct caused unnecessary delay.
- 14) Either party may file an At Issue Memorandum to request a Status Conference at which time a trial date can be requested if it is determined that the parties are ready for trial on the remaining issues.
- 15) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 16) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ELISIA SOLOMON,

Petitioner

VS.

TROY SOLOMON,

Respondent

) Case Number: FDI-24-799830

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: EX PARTE ORDERS: CLOSE OF ESCROW SALE DISTRIBUTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this case are Petitioner Elisia Solomon and Respondent Troy Solomon. The parties have three minor children, Sebastian (DOB: 1/2/2009), Avery (DOB: 10/20/2010), and Chase (DOB: 10/12/2012).
- 2) On 6/12/2024, Petitioner filed a Petition for Dissolution of Marriage. In the Petition, Petitioner states the parties married on 10/7/2000 and separated on 4/19/2020, for a marriage of 19 years and 6 months. Petitioner listed 9 community properties.
 - a. 3006 Sacramento St. San Francisco, CA
 - b. 2563 W. Pueblo Ave. Napa, CA
 - c. 656 Julmar Cir. Fairfield, CA
 - d. 2820 Kilburn Ave. Napa, CA
 - e. 20 Thomas Lane Oldsmar, FL
 - f. 1466 Hillview Ln. Tarpon Springs, FL
 - g. 2547 West Brook Ln. Clearwater, FL

h. 70 James Ct. Oldsmar, FL

i. 237 Hemmingway Dr. Oldsmar, FL

- 3) Per the Proof of Service of Summons filed 8/7/2024, the Petition and Summons were personally served on Respondent at 3006 Sacramento St. San Francisco, CA by a registered process server.
- 4) On 9/18/2024, Petitioner filed a Community Property Declaration listing the same 9 pieces of real property listed in the Petition. Petitioner's Community Property Declaration listed two additional pieces of real property as community property: "2818-2820 in Kilburn CA" and "18810 Cloverstone, NC". The Community Property Declaration proposes that each party be awarded "one-half" of the equity in these properties.
- 5) On 9/20/2024, after Respondent failed to file a Response to the Petition, the Court entered Respondent's default. Attached to the Request to Enter Default is the Community Property Declaration Petitioner filed on 9/18/2024. The clerk mailed a copy of the Request to Enter Default (with the attached Community Property Declaration) to Respondent on 9/20/2024.
- 6) On 11/26/2024, Petitioner submitted a proposed True Default Judgment.
- 7) On 11/27/2024, Petitioner filed a Declaration in which she states, "During the marriage we acquired substantial assets which include our San Francisco residence (3006 Sacramento Street SF CA) and rental properties in California and Florida. Troy has managed these assets during the marriage and after separation. I asked Troy to give me the information for these properties including the rental income information, but Troy has ignored my requests."
- 8) On 11/27/2024, this Court set a prove-up hearing on Petitioner's request to enter the True Default Judgment. The Order Setting Prove-Up Hearing was mailed to both parties. The prove-up hearing occurred on 2/21/2025. Only Petitioner and her attorney appeared. At the prove-up hearing, the Court ordered Petitioner to have Respondent served with her Declaration filed 11/27/2024 as well as her proposed True Default Judgment. Per the Proof of Service filed 3/4/2025, these items were mailed to Respondent on 2/27/2025.
- 9) On 4/14/2025, the Court entered the True Default Judgment. The Judgment awards Petitioner sole legal and physical custody of the parties' children. The Judgment confirms as community property the 11 pieces of real property listed in Petitioner's 9/18/2024 Community Property Declaration. The Court's jurisdiction to divide the community assets was reserved. The Judgment

1 also requires Petitioner to pay Respondent \$2,912 per month in base child support plus an
2 additional \$1,102 per month for “costs related to the educational or other special needs of the
3 children” effective 7/1/2024.

4 10) On 5/12/2025, the Court entered an Income Withholding Order for Support to garnish from
5 Respondent’s pay \$2,912 per month for base guideline child support.

6 11) On 5/1/2025, Petitioner filed a Request for Order asking the Court to compel the immediate
7 listing and sale of the 11 pieces of real property “with net proceeds equally divided after
8 satisfaction by Respondent from his share of sale process for all support / fee arrearages.”
9 Petitioner further requests that “the Clerk of the Court or the Clerk’s designee be authorized upon
10 Ex Parte application by Petitioner to sign any document on behalf of Respondent for the listing or
11 sale of any of the properties.” Petitioner states that in 2020, she and the parties’ children vacated
12 the “San Francisco residence” (3006 Sacramento St. SF CA) but Respondent has remained living
13 there. Petitioner states Respondent has occasionally seen the children since the parties separated.
14 Petitioner states Respondent has made no child support payments to date. Petitioner states the
15 parties “acquired substantial assets” during marriage and Respondent has “managed these assets
16 during the marriage and after separation.” Petitioner states, “Since entry of the April 14, 2025,
17 Judgment my attorney has written Troy twice asking him to cooperate in selling the properties
18 and in making support payments. Troy did not respond. If Troy does not cooperate in signing
19 documents for the listing or sale of the properties listed in this motion, I ask that the Court
20 authorize me to make Ex Parte applications to have the Clerk of the Court or the Clerk’s designee
21 to sign any necessary documents on behalf of Troy.”

22 12) There is no Proof of Service on file showing service of Petitioner’s Request for Order filed
23 5/1/2025. However, in Petitioner’s Supplemental Declaration filed 7/14/2025, she states she had
24 her Request for Order personally served on Respondent and references a Proof of Service filed
25 6/5/2025 (this document is not in the Court’s docket). In her Supplemental Declaration Petitioner
26 also states: “After I filed this RFO I discovered that while Respondent was collecting the rents for
27 the Florida properties, he has not been paying the real estate taxes for the Florida properties –
28 Respondent has in fact not paid the real estate taxes since 2022. The real estate taxes on our
29 Florida rental properties are now delinquent for taxes tax years 2023 and 2024. I have asked

Respondent to list and sell the rental properties, but he has ignored me... Respondent has not paid any of the child support payments as set forth in our Judgment.”

13) Per the Proof of Service filed 7/14/2025, Petitioner’s Supplemental Declaration was mailed to Respondent at the 3006 Sacramento St. address on 7/14/2025.

14) At the prior 7/22/2025 hearing, the Court ordered as follows:

a. The following properties, which the Court confirmed are community property in the Judgment filed 4/14/2025, shall be immediately listed for sale and sold.

- i. 3006 Sacramento St. San Francisco, CA
- ii. 2563 W. Pueblo Ave. Napa, CA
- iii. 656 Julmar Cir. Fairfield, CA
- iv. 2820 Kilburn Ave. Napa, CA
- v. 20 Thomas Lane Oldsmar, FL
- vi. 1466 Hillview Ln. Tarpon Springs, FL
- vii. 2547 West Brook Ln. Clearwater, FL
- viii. 70 James Ct. Oldsmar, FL
- ix. 237 Hemmingway Dr. Oldsmar, FL
- x. 2818-2820 in Kilburn CA
- xi. 18810 Cloverstone, NC

b. The parties shall meet and confer to select listing agents for the sale of these properties no later than 8/15/2025. If Respondent fails to meet and confer in good faith by 8/15/2025, Petitioner is authorized to unilaterally select real estate agent(s) to list and sell these properties. Both parties shall be CC’d on all written communications with the real estate agent(s).

c. Respondent shall cooperate with all directives by the real estate agent(s) to take all steps necessary to prepare, list, and sell the properties.

d. If Respondent fails to sign any documents necessary to prepare, list, and sell any of the properties, Petitioner is authorized to make an ex parte application to the Court to have the Clerk of the Court or the Clerk’s designee to sign such documents on Respondent’s behalf. Any ex parte application must include as an attachment the document(s)

Petitioner would like the Court to sign on Respondent's behalf. Any ex parte application must also include as an attachment documentary proof that the document(s) were first presented to the Respondent for his signature.

- e. If and when any of the properties are sold, 50% of the net sale proceeds shall be distributed directly to Petitioner. The remaining 50% net sale proceeds for each property shall be deposited into a blocked joint bank account in both parties' names. Neither party may make a withdrawal from the blocked joint bank account unless the parties have a written agreement or Court order permitting the withdrawal.
- f. The Court intends not to release Respondent's 50% of the net sale proceeds for any of the properties until it has adjudicated what amounts in child support arrears Respondent may owe Petitioner.
- g. A review hearing is set for Thursday, 1/15/2026 at 9:00 AM in Dept. 403 to review the parties' compliance with the orders set forth above, to monitor status, and to make any additional necessary orders. At least 20 calendar days prior to the next hearing date, both parties shall file and serve a declaration (not exceeding 10 pages, not including exhibits) providing an update to the Court and stating any requests for additional necessary orders. At least 10 calendar days prior to the next hearing date, the other party may file a declaration (not exceeding 10 pages, not including exhibits) responding to any requests by the other party for additional orders.

15) On 9/5/2025, the Court issued a Temporary Emergency (Ex Parte) Order permitting Court Executive Officer Brandon Riley to sign and initial the sale/listing agreements on behalf of Respondent for the San Francisco property, Fairfield property, and Florida properties.

16) On 12/5/2025, the Court issued an additional Temporary Emergency (Ex Parte) Order permitting Court Executive Officer Brandon Riley to sign and initial the sale/listing agreements on behalf of Respondent for the Fairfield property and North Carolina property.

17) On 1/7/2026, Petitioner filed an update declaration asserting that Respondent has continued to refuse to sign any documents; however, listing agreements for 6 of the 11 properties have now been signed pursuant to the Court's Temporary Emergency (Ex Parte) Orders issued 9/5/2025 and 12/5/2025. Petitioner further asserts that the Fairfield property is now in escrow and set to close

1 on 2/11/2026 with the estimated net proceeds at \$351,946.57. Petitioner requests that 50% of the
2 net sale proceeds be distributed to her and that she be awarded \$79,434 from Respondent's 50%
3 interest in the net sale proceeds for the 19 months of unpaid child support Respondent owes to
4 Petitioner (\$4,014 x 19 months + \$3,168 in interest). Petitioner requests that Respondent's
5 remaining interest be held in trust by Petitioner's attorney as Petitioner cannot open a joint bank
6 account because Respondent will not cooperate or sign any documents. Petitioner requests that
7 each party be assigned 50% of the taxable interest on the sale proceeds. Petitioner also requests
8 the Court reserve jurisdiction over the attorney's fees and until after all the properties are sold as
9 filing ex parte applications to get all the necessary documents signed is costly. Petitioner requests
10 an additional compliance hearing on 3/26/2026. Petitioner attached a Proof of Service indicating
11 her 1/7/2026 update declaration was served on Respondent by mail on 1/8/2026.

12 18) Respondent did not file an update declaration.

13 19) At the prior 1/29/2026 hearing, the Court ordered as follows:

- 14 a. Petitioner's unopposed request that 50% of the net sale proceeds from the sale of the
15 Fairfield property be distributed to Petitioner after closing is GRANTED. The Court
16 reaffirms the 7/22/25 order, which states, "If and when any of the properties are sold,
17 50% of the net sale proceeds shall be distributed directly to Petitioner."
- 18 b. Petitioner's unopposed request that Respondent's 50% of the net sale proceeds from the
19 sale of the Fairfield property be held in trust by Petitioner's attorney given Respondent's
20 refusal to cooperate with the Court's 7/22/25 order to open a joint bank account is
21 GRANTED.
- 22 c. Petitioner's unopposed request that each party be assigned 50% of the taxable interest on
23 the net sale proceeds from the sale of the Fairfield property is GRANTED.
- 24 d. Petitioner's request that she be allocated \$79,434 from Respondent's 50% of the net sale
25 proceeds for 19 months of unpaid child support Respondent owes to Petitioner (\$4,014 x
26 19 months + \$3,168 in interest) is GRANTED.
- 27 e. The Court reserves jurisdiction over attorney's fees and costs.
- 28 f. A review hearing is set for 4/9/2026 at 9 AM in Dept. 403 to review the parties'
29 compliance with the orders set forth above, to monitor status, and to make any additional

1 necessary orders. At least 20 calendar days prior to the next hearing date, both parties
2 shall file and serve a declaration (not exceeding 10 pages, not including exhibits)
3 providing an update to the Court and stating any requests for additional necessary orders.
4 At least 10 calendar days prior to the next hearing date, the other party may file a
5 declaration (not exceeding 10 pages, not including exhibits) responding to any requests
6 by the other party for additional orders.

7 20) On 2/6/2026, the Court issued a Temporary Emergency (Ex Parte) Order permitting Court
8 Executive Officer Brandon Riley to sign and initial sale and escrow documents for the Fairfield
9 property.

10 21) On 3/20/2026, Petitioner filed an update declaration asserting that Petitioner is working to sell the
11 North Carolina property and requesting the Court continue the review hearing for 90 days.

12 22) On 4/9/2026, the Court granted Petitioner's unopposed request that the Court continue the review
13 hearing scheduled for 4/9/26 for 90 days. The matter was continued to 7/9/26 at 9 AM in Dept.
14 403 to review the parties' compliance with the existing orders, to monitor status, and to make any
15 additional necessary orders. At least 20 calendar days prior to the next hearing date, both parties
16 shall file and serve a declaration (not exceeding 10 pages, not including exhibits) providing an
17 update to the Court and stating any requests for additional necessary orders. At least 10 calendar
18 days prior to the next hearing date, the other party may file a declaration (not exceeding 10 pages,
19 not including exhibits) responding to any requests by the other party for additional orders.

20 23) On 5/19/2026, the Court issued a Temporary Emergency (Ex Parte) Order regarding the net sale
21 proceeds from the North Carolina property awarding half to each party to be held in Petitioner's
22 attorney trust account pending hearing set for 6/11/2026.

23 24) On 6/3/2026, Petitioner filed a supplemental declaration reiterating her requests for distribution of
24 the net sale proceeds from the North Carolina property as follows: (a) half awarded to each party,
25 with the other party indemnified and held harmless from any tax obligation arising from the other
26 party's one-half; (b) reimbursement of \$8,985.48 from Respondent's one-half for expenses
27 Petitioner advanced to prepare the property for sale; (c) \$20,070 from Respondent's one-half for
28 unpaid child support Respondent owes Petitioner for February 2026 – June 2026 (i.e., \$4,104 per
29 month x 5 months unpaid).

25) On the Court's own motion, the 6/11/2026 hearing was continued to 7/9/2026.

26) On 6/17/2026, the parties filed a Stipulation and Order agreeing to an advance of \$25,000 in funds to Respondent.

27) On 6/19/2026, Petitioner filed an update declaration reiterating her request set forth in her 6/3/2026 supplemental declaration and requesting a review hearing in October 2026 regarding the sale of the Sacramento Street property.

B. Findings and Order

- 1) Petitioner unopposed requests for distribution of the net sale proceeds of the North Carolina property are GRANTED as follows:
- 2) The Court reaffirms its prior order that one-half of the net sale proceeds from the North Carolina property (18810 Cloverstone Circle, Cornelius, North Carolina) shall be awarded to each party, with the other party indemnified and held harmless from any tax obligation arising from the other party's one-half.
- 3) Petitioner shall be permitted to deduct reimbursement of \$8,985.48 from Respondent's one-half for expenses Petitioner advanced to prepare the property for sale.
- 4) Petitioner shall be permitted to also deduct \$20,070 from Respondent's one-half for unpaid child support Respondent owes Petitioner for February 2026 – June 2026 (i.e., \$4,104 per month x 5 months unpaid).
- 5) The matter is set for a **review hearing on 10/8/2026 at 9 AM in Dept. 403** to review the parties' compliance with the existing orders, to monitor status, and to make any additional necessary orders. At least 20 calendar days prior to the next hearing date, both parties shall file and serve a declaration (not exceeding 10 pages, not including exhibits) providing an update to the Court and stating any requests for additional necessary orders. At least 10 calendar days prior to the next hearing date, the other party may file a declaration (not exceeding 10 pages, not including exhibits) responding to any requests by the other party for additional orders.
- 6) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LASHANAE EVERETTE,

Petitioner

VS.

JAMES WHITE JR.,

Respondent

) Case Number: FDV-25-818208

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHILD CUSTODY, REQUEST MOTION TO
VACATE/REONCISDER/ORDER SHORTENING TIME/EXPEDITED REVIEW

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAGNOLLY BAUTISTA,

Petitioner

VS.

FRANKLIN MICHAEL TAMAYO ALVAREZ,

Respondent

) Case Number: FDV-25-818754

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

RESTITUTIONS RELATED TO DVRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Magnolly Bautista (Mother) and Respondent Franklin Michael Tamayo Alvarez (Father). They share one minor child: Thiago Tamaya Bautista (DOB: 4/12/15).
- 2) On 11/7/25, Mother filed a Request for Domestic Violence Restraining Order (DVRO) seeking protection from Father wherein she requested the following restitution (i.e., expenses caused by the abuse): (a) \$60 in medical co-pay paid to Kaiser; (b) \$500 in temporary necessities; and (c) an amount to be determined in Lyft expenses. Mother also checked the box for child support in her DVRO request.
- 3) On 12/31/25, the Court granted a Restraining Order After Hearing for a period of one-year wherein Mother is the protected party and Father is the restrained party. The minor child is not listed as a protected party; however, the Court issued custody and visitation orders. The matter was continued to 3/19/26 at 9 AM in Dept. 403 for the Court to adjudicate the financial issues.
- 4) On 3/17/26, Mother filed an update declaration asserting that she and the minor child fled their home on 10/20/25 without the car or any belongings. Mother states she was forced to use Lyft

1 and purchase necessities as a result. Mother lists the following total expenses she incurred: (a)
2 \$462.68 for Lyft; (b) \$312.12 at Ross for clothing and toys; and (c) 41.01 at Whole Foods for
3 food. Mother states that when she returned to the family's apartment to pick up her own and the
4 minor child's belongings all her valuables (such as brand name wallets and watches) were gone.

5 5) On 3/19/26, the matter was continued to 3/26/26 on the Court's own motion.

6 6) On 3/26/26, the matter was continued to 5/26/26 on the Court's own motion because a Spanish
7 interpreter was not available to assist with the hearing.

8 7) On 5/19/26, the matter was continued to 7/9/26 on the Court's own motion.

9 8) On 5/21/26, Mother filed Petitioner's Declaration in Support of Child Support, which includes a
10 proposed XSpouse calculation based on Father's asserted earning capacity (full-time San
11 Francisco minimum wage) given that Father failed to file an Income and Expense Declaration and
12 Mother knows that Father works as an Amazon driver.

13 **B. Findings and Order**

14 1) Family Code section 6200 codifies the Domestic Violence Prevention Act (DVPA), which seeks
15 to remedy domestic violence and provide separation to ensure the safety of the parties.

16 2) Under the DVPA, the Court can issue orders providing victims of domestic violence relief from
17 their financial obligations to prevent inability to separate or return to abuse out of economic
18 necessity (i.e., a lack of financial resources). (See section 6342; see also In re Marriage of J.Q. &
19 T.B. (2014) 223 Cal.App.4th 687, 702.)

20 3) Restitution under the DVPA is a statutory remedy only available to victims of domestic violence.
21 (Family Code section 6342(a).)

22 4) Here, the Court made a finding that Mother is a victim of domestic violence. See Restraining
23 Order After Hearing filed 12/31/25.

24 5) Mother asserts that she incurred a total of \$815.81 in expenses from fleeing the abuse because she
25 was forced to leave without the car or any belongings (\$462.68 for Lyft + \$312.12 at Ross for
26 clothing and toys + 41.01 at Whole Foods for food).

27 6) Accordingly, Mother's unopposed request for restitution in the amount of \$815.81 is GRANTED.
28 Father shall pay this balance in full by 8/9/26.

- 1 7) The Court finds good cause to continue Mother's request for child support as neither party filed
2 form FL-150 (Income and Expense Declaration).
- 3 8) Mother's request for child support is therefore **continued to 8/19/26 at 9 AM in Dept. 403**. At
4 least 10 days in advance of the hearing, both parties shall file and serve form FL-150 (Income and
5 Expense Declaration).
- 6 9) However, the Court further finds good cause to adopt Mother's proposed XSpouse calculation
7 attached to her 5/21/26 declaration in the interim, which imputes Father's with full-time San
8 Francisco minimum wage income (i.e., \$3,399 monthly) and is based on Mother earning \$3,024
9 in monthly income and paying \$68 in monthly union dues. Mother asserts, under penalty of
10 perjury, that Father works as an Amazon driver. Mother's proposed XSpouse calculation is
11 attached hereto and incorporated herein for convenience.
- 12 10) The Court finds imputation of full-time San Francisco minimum wage income to Father is
13 consistent with the best interests of the children, taking into consideration the overall welfare and
14 developmental needs of the child, and the time that parent spends with the child.
- 15 11) As such, effective 7/1/26, and on a temporary basis, Father owes Mother \$674 per month in child
16 support by the 1st of every month. Father shall pay Mother support for July 2026 by 7/16/26.
- 17 12) The Court reserves jurisdiction over recalculation of this child support award retroactive to
18 11/7/25 (i.e., the filing date of her Mother's Request for DVRO). The Court also reserves
19 jurisdiction over any child support arrears Father may owe to Mother retroactive to 11/7/25.
- 20 13) Counsel for Mother shall prepare Findings and Order After Hearing, which shall include as an
21 attachment form FL-342.
- 22 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within
27 10 days may allow the other party to prepare a proposed order and submit it to the court in
28 accordance with CA Rules of Court, Rule 5.125(d).
29

2026

Guideline Summary

Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow	
Number of children	0	1	2026		Combined net spendable	5809
Percent time with NCP	4.16%	0.00%				
Filing status	SINGLE	HH/MLA	Nets (adjusted)		Father	
Number of exemptions	1	2			Payment cost/benefit	-674
Wages and salary	3399	3024	Father	2828	Net spendable income	2154
Self employed income	0	0	Mother	2981	Federal income tax	226
Other taxable income	0	0	Total	5809	Federal employment tax	260
TANF CS received	0	0	Support		State income tax	44
Other nontaxable income	0	0	Addons	0	State employment tax	41
New spouse income	0	0	Guideln CS	-674	Total taxes	571
Employee 401-k contribution	0	0	S.Clara SS	0	Federal filing status	SINGLE
Adjustments to income	0	0	Total	-674	State filing status	SINGLE
SS paid prev marriage	0	0			Mother	
CS paid prev marriage	0	0			Payment cost/benefit	674
Health insurance	0	0			Net spendable income	3654
Other medical expenses	0	0			Federal income tax	-293
Property tax expenses	0	0			Federal employment tax	231
Ded interest expense	0	0			State income tax	0
Contribution deduction	0	0			State employment tax	36
Misc tax deductions	0	0			Total taxes	-25
Qualified business income deduction	0	0			Federal filing status	HH/MLA
Required union dues	0	68			State filing status	HH/MLA
Mandatory retirement	0	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

FC 4055 checking: ON

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		4 - 96	0	0	0 Father	674 Father	674 Father
	0000-00-00	4 - 96	0	0	0 Father	674 Father	674 Father

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